

26CMCV00663 26CMCV00663

County: los-angeles

Division: Civil Law and Motion

Department: A

Hearing date: 2026-08-12

Motion: DEFENDANT CERRITOS FORD, INC.'S MOTION TO COMPEL ARBITRATION

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Case Number: 26CMCV00663 Hearing Date: August 12, 2026 Dept: A

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES – SOUTH CENTRAL DISTRICT

ROBERTO PEREZ GARIBALDI,

Plaintiff,

vs.

FORD

MOTOR COMPANY, et al.,

Defendants.

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CASE NO: 26CMCV00663

[TENTATIVE]

ORDER RE: DEFENDANT CERRITOS FORD, INC.'S MOTION TO COMPEL ARBITRATION

Dept.

A

DATE:

August 12, 2026

TIME:

8:30 A.M.

COMPLAINT

FILED: 04/08/2026

TRIAL:

None set

MOVING

PARTY: Defendant Cerritos

Ford, Inc.

RESPONDING

PARTY: Plaintiff Roberto Perez

Garibaldi

1. Background

This is an action brought under the Song-Beverly Act. Plaintiff Roberto Perez Garibaldi alleges that on June 4, 2023, he entered into a warranty contract with defendant Ford Motor Company ("FMC") regarding a 2023 Ford F-150 (the "Vehicle"). Garibaldi alleges that defects and nonconformities to warranty manifested themselves in the Vehicle within the applicable express warranty period, substantially impairing the use, value, or safety of the Vehicle. Garibaldi alleges that defendant Cerritos Ford, Inc. ("Cerritos" or "Movant") failed to use ordinary care in storing, preparing, or repairing the Vehicle.

2. Discussion

Cerritos moves to compel Garibaldi's claims against it to arbitration. Cerritos contends that Garibaldi agreed to an arbitration agreement wherein the parties agreed to arbitrate any claim or dispute arising out of the purchase or condition of the Vehicle. In opposition, Garibaldi contends that Cerritos failed to properly authenticate the contract and that his claim is outside the scope of the arbitration agreement.

Under

California and federal law, public policy favors arbitration as an efficient and less expensive means of resolving private disputes. (*Moncharsh v. Heily & Blasé* (1992) 3 Cal.4th 1, 8-9 (*Moncharsh*); *AT&T Mobility LLC v. Concepcion* (2011) 563 U.S. 333, 339.) Accordingly, whether an agreement is governed by the California Arbitration Act (CAA) or the Federal Arbitration Act (FAA), courts resolve doubt about an arbitration agreement's scope in favor of arbitration. (*Moncharsh, supra*, 3 Cal.4th at p. 9; *Comedy Club, Inc. v. Improv West Associates* (9th Cir. 2009) 553 F.3d 1277, 1284.) "[U]nder both the FAA and California law, 'arbitration agreements are valid,

irrevocable, and enforceable, save upon such grounds as exist at law or in equity for the revocation of any contract.” (Higgins v. Superior Court (2006) 140 Cal.App.4th 1238, 1247.)

The

party seeking to compel arbitration bears the burden of proving the existence of a valid arbitration agreement by the preponderance of the evidence. (Engalla v. Permanente Medical Group (1997) 15 Cal.4th 951, 972.) A petition

to compel arbitration must allege both a “written agreement to arbitrate” the controversy, and that a party to that agreement “refuses to arbitrate” the controversy. (Code Civ. Proc. § 1281.2.) For this step, it is not necessary to follow the normal procedures of document authentication. (Gamboa v. Northeast Community Clinic (2021) 72 Cal.App.5th 158, 165 (Gamboa).)

The movant can bear their initial burden by attaching a copy of the arbitration agreement purportedly bearing the opposing party’s signature, or by setting forth the agreement’s provisions in the motion. (Ibid.; Iyere v. Wise Auto Group (2023) 87 Cal.App.5th 747, 755 (Iyere).) It then becomes the opposing party’s burden, in opposing the motion, to prove by a preponderance of the evidence any fact necessary to their opposition. (Engalla, supra, 15 Cal.4th 951 at p. 972.)

“Code of Civil

Procedure section 1281.2 requires a trial court to grant a petition to compel arbitration ‘if the court determines that an agreement to arbitrate the controversy exists.’” (Avery v.

Integrated Healthcare Holdings, Inc. (2013) 218 Cal.App.4th 50, 59 (Avery), quoting Code Civ. Proc. § 1281.2.) Accordingly, “when presented with a petition to compel arbitration, the court’s first task is to determine whether the parties have in fact agreed to arbitrate the dispute.” (Avery, supra, at p. 59.) Generally, on a motion to compel arbitration, the court must grant the motion unless it finds either (1) no written agreement to arbitrate exists; (2) the right to compel arbitration has been waived; (3) grounds exist for revocation of the agreement; or (4) litigation is pending that may render the arbitration unnecessary or create conflicting rulings on common issues. (Ibid.)

“In these summary proceedings the trial court sits as a trier of fact, weighing all the affidavits, declarations, and other documentary evidence, as well as oral testimony received at the court’s discretion, to reach a final determination.” (Ibid.)

Cerritos has

attached a copy of the sales contract for the Vehicle, including the arbitration agreement that Cerritos contends is applicable to this action, as Exhibit A to the declaration of attorney Trina M. Clayton. The sales contract purports to contain Garibaldi's e-signature. The arbitration agreement states that it applies to "[a]ny claim or dispute, whether in contract, tort, statute or otherwise... between you and us or our employees, agents, successors or assigns, which arises out of or relates to your credit application, purchase or condition of this Vehicle, this contract or any resulting transaction or relationship." (Clayton Decl., Ex. A.)

The instant action, as an action arising under the Song-Beverly Act, indisputably relates to the condition of the Vehicle. Therefore, the arbitration agreement outlined in the sales agreement is applicable to the instant action.

Under *Gamboa and Iyere*, attaching a copy of the arbitration agreement to the motion constitutes setting forth the agreement's provisions in the motion, which is sufficient to fulfill Movants' initial burden of proving the existence of an arbitration agreement between the parties. Although Garibaldi contends that Attorney Clayton's declaration is insufficient to authenticate the arbitration agreement, that is not required to carry Cerritos' initial burden on a motion to compel arbitration. (*Gamboa*, supra, 72 Cal.App.5th at p. 165.)

Garibaldo also contends that, under *Ford Motor Warranty Cases* (2025) 17 Cal.5th 1122, an arbitration agreement in a sales contract signed with a dealership does not apply to warranty claims. The court's opinion in *Ford Motor Warranty Cases* does not stand for this proposition. Rather, in that case, the court found that a manufacturer who sought to compel arbitration on a plaintiff's warranty claims could not use an arbitration agreement in a sales contract signed solely between the plaintiff and a dealership. The court in *Ford Motor Warranty Cases* made no statement, as Garibaldi contends, that the dealership itself could not arbitrate the plaintiff's claims, even if those are warranty claims. The *Ford Motor Warranty Cases* are therefore inapposite.

Accordingly, Garibaldi has failed to carry his burden to demonstrate that there is no valid arbitration agreement between the parties. The court will therefore grant Cerritos' motion to compel Garibaldi's claims to arbitration.

3. Conclusion

Based on the foregoing, the court GRANTS Defendant Cerritos Ford, Inc.'s motion to compel arbitration.

The court orders (1) plaintiff Roberto Perez Garibaldi and defendant Cerritos Ford, Inc. to arbitrate the claims alleged in plaintiff Roberto Perez Garibaldi's complaint, and (2) this action is stayed as to all defendants until arbitration is completed.

The court sets a Status Conference Re: Arbitration for hearing on May 11, 2027, at 8:30 a.m., in Department A.

Movants are ordered to give notice.

IT IS SO ORDERED.

DATED: August 12, 2026

Hon. Elizabeth L. Bradley

Judge of the Superior Court